



2025:AHC:184517-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 7456 of 2025

Brijpal @ Brijpal Singh

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Anees Ahmad
Counsel for Respondent(s)	:	C.S.C., Mukesh Kumar Singh

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioner and leaned Standing Counsel for the State-respondents.

2. The petitioners by means of the present writ petition have prayed for the following relief:-

"(i) Issue a writ order or direction in the nature of mandamus directing the respondents to receive the actual electricity amount due upon the petitioner after calculation in easy installment and also to restore the electricity connection of the petitioner as disconnected by the department.

(ii) Issue a writ order or direction in the nature of mandamus directing the respondents not to collect the penalty imposed upon the petitioner due to non payment of electricity dues.

(iii) Issue any other suitable writ order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

(iv). Award cost to the petition in favour of the petitioner."

3. The petitioner has been issued a bill of Rs. 1,45,166/-. The petitioner admits his liability to pay the said amount, however, the petitioner submits that he may be granted opportunity to pay the aforesaid amount in installments as the petitioner is not financially sound to pay the aforesaid amount in one go.

4. Learned counsel for the respondents fairly submits that there is a Clause 6.14 of Electricity Supply code, 2005, which provides for payment of electricity dues in installments.

5. In view of above aforesaid fact, the writ petition is ***disposed off*** permitting the petitioner to file a detailed representation before respondent no.2/Executive Engineer, Madhyanchal Vidyut Vitran Khand, Madnapur, Shahjahanpur, within a period of two weeks from today. On submitting the said representation, the respondent no.2 shall consider and decide the same in light of Clause 6.14 of Electricity Supply code, 2005 within a period of two weeks thereafter.

6. It is expected that the respondent no.2 shall take a sympathetic view in the matter and shall grant permission to the petitioner for payment of electricity dues in installments.

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)

October 15, 2025

Virendra